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Case Number: 24STCV26360 Hearing Date: July 7, 2026 Dept: 510

No. 16 - Flosieta Davis v. American

Honda Motor Co., Inc.

Defendant American Honda Motor Co., Inc.'s Motion for Summary Judgment or Summary Adjudication

Defendant American Honda Motor Co., Inc. moves for summary judgment or, in the alternative, summary adjudication of each cause of action brought by Plaintiff Flosieta Davis.

Request for Judicial Notice

Plaintiff

requests judicial notice of 10 exhibits, including five technical service bulletins and five NHTSA reports and communications. The Court declines to take judicial notice of these documents as they are irrelevant to deciding the instant motion. The request for judicial notice is denied.

Evidentiary Objections

Defendant makes 20

objections to the Declaration of Benjamin Fuchs. Objection nos. 1 and 3-20 are sustained. The remaining objection is overruled.

Legal Standard

A defendant moving for summary adjudication of a cause of action must show "that one or more elements of the cause of action... cannot be established, or that there is a complete defense to

the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant does so, the burden shifts to the plaintiff to show a triable issue of at least one material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 849.)

1st-3rd Causes of Action: Claims Under Song-Beverly Consumer Warranty Act

Defendant is entitled to summary

adjudication of Plaintiff’s first three causes of action. The first three causes of action are based on Civil Code section 1793.2, a provision of the Song-Beverly Consumer Warranty Act: (1) failure to repair or replace after a reasonable number of attempts (§ 1793.2(d)); (2) failure to commence repairs within a reasonable time (§ 1793.2(b)); and (3) failure to make available sufficient literature for repairs (§ 1793.2 (a)(3)).

“A plaintiff pursuing an action

under the Song-Beverly Act has the burden to prove the following elements: (1) the product had a defect or nonconformity covered by the express warranty; (2) the product was presented to an authorized representative of the manufacturer for repair; and (3) the manufacturer or its representative did not repair the defect or nonconformity after a reasonable number of repair attempts.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 798-799 (Robertson); see also Civ. Code, § 1793.2(d)(1) [“if the manufacturer or its representative in this state does not service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer”].)

“ ‘Attempts’ is plural. The

statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.” (Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1208.) “At a minimum there must be more than one opportunity to fix the nonconformity.” (Robertson, supra, 144 Cal.App.4th at p. 799.)

Here, Plaintiff provides no

admissible evidence that there were any repair attempts on the subject vehicle for the sensing defect identified in the complaint. Rather, Defendant shows that the only documented repair on the vehicle involved repair of a side mirror that was broken off. (See Def. Ex. 6.) In opposition, Plaintiff merely argues that the absence of a documented repair does not mean no defect existed. This

argument misses the point. Plaintiff has the burden to show that triable issues exist as to whether the vehicle suffered a defect covered by the warranty, and whether Plaintiff presented the vehicle for a reasonable number of repair attempts. She does not provide any admissible evidence to meet her burden.

Further, statements made in Plaintiff's counsel's declaration do not meet this burden. Counsel declares: "Nothing on file with Plaintiff's counsel SLP supports that the body of repair orders currently on file with Plaintiff's counsel constitutes a comprehensive detailing of all the issues Plaintiff encountered during her ownership of the Vehicle. . . . Due to the ongoing status of discovery, it is premature to conclude that there is no additional evidence of repair presentations." (Fuchs Decl., ¶¶ 9, 11.) Counsel's speculation that there may be evidence of requisite repair attempts in the future is not itself admissible evidence of a triable issue of material fact.

4th Cause of Action: Breach of Implied Warranty of Merchantability

Defendant is entitled to summary adjudication of this cause of action. Under the Song-Beverly Act, the implied warranty of merchantability "may be breached by a latent defect undiscoverable at the time of sale." (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1304.) Here, Plaintiff provides no admissible evidence that creates a triable issue of material fact as to whether her vehicle had a latent defect. Instead, Plaintiff argues that technical bulletins and NHTSA reports establish that Defendant's "Accord product line suffered from a systematic latent defect capable of causing sudden unexpected braking." (Opp., at p. 6.) This again misses the point. Plaintiff has the burden of showing that there is a triable issue of fact as to whether her car had a latent defect, not that other, similar cars did. Plaintiff provides no evidence or personal declaration attesting to this fact. Further, evidence that other cars of similar models had this defect does not show that Plaintiff's specific vehicle had this defect.

5th Cause of Action: Fraudulent Inducement – Concealment

Defendant is also entitled to summary adjudication of this cause of action. Fraud by concealment requires that: (1) defendant omitted or concealed a

material fact; (2) defendant had a duty to disclose the fact to Plaintiffs; (3) defendant intentionally omitted or concealed the fact with intent to defraud Plaintiffs; (4) Plaintiffs must have been unaware of the fact and would have acted otherwise if he had known of the concealed fact; and (5) the omission caused damages. (Boschma v. Home Loan Center, Inc. (2011) 198 Cal.App.4th 230, 248.)

Plaintiff does not show a triable issue of material fact as to the fourth element: that she was unaware of a material fact, and that she would have acted otherwise if she had known of the fact. The only evidence Plaintiff submits in opposition, ten bulletins and one counsel declaration, do not reveal Plaintiff's reliance on any concealed fact. Nor is there evidence that Plaintiff's vehicle had a defect, such that any information was in fact concealed.

Disposition

Defendant American Honda

Motor Co., Inc.'s motion for summary judgment is granted.